

**ACQUISITION AMENDMENT TO PLANET FITNESS
FRANCHISE AGREEMENT**

This Acquisition Amendment (the “Amendment”) to the **PLANET FITNESS** Franchise Agreement is made and entered into as of the Effective Date (as set forth on the signature page hereto) by and between Planet Fitness Mexico, S. de R.L. de C.V., a limited liability company of variable capital formed under the laws of Mexico, with a mailing address at Av. Insurgentes Sur 1787, 4th Floor, Guadalupe Inn, Alvaro Obregón, Mexico City, Z.C. 01020 (referred to in this Amendment as “we,” “us” or “our”), and the Franchisee set forth on the signature page hereto (referred to in this Amendment as “you” or “your”).

BACKGROUND

WHEREAS, Planet Fitness International Franchise, LLC (“Prior Franchisor”) previously entered into a Franchise Agreement (the “Initial Franchise Agreement”) with you effective March 5, 2019 (the “Initial Agreement Date”) pursuant to which Prior Franchisor and you agreed to certain terms and conditions regarding the development and operation of a **PLANET FITNESS BUSINESS** located at Plaza Arcadia, Ave Eloy Cavazos #3301, Suite 21, Colonia Camino Real Guadalupe, Nuevo León 67170, Mexico (the “BUSINESS”);

WHEREAS, on October 20, 2023, our affiliate acquired ownership of you, and, as of the Effective Date, has contributed ownership of you to Planet Fitmex, LLC with our approval (the “Sale”);

WHEREAS, as a condition of our approval of the Sale, we and you are entering into a new franchise agreement (the “Acquisition Agreement”) as of the Effective Date which shall govern the continuing operation of the BUSINESS following the Sale; and

WHEREAS, we and you desire to amend the terms of the Acquisition Agreement as set forth herein.

NOW, THEREFORE, FOR GOOD AND VALUABLE CONSIDERATION, the receipt and sufficiency of which are hereby acknowledged, the parties hereto agree as follows:

AGREEMENT

1. **CONDITIONS FOR GRANT OF FRANCHISE.** You agree to complete the requirements set forth in Attachment A to this Amendment (the “**Conditions for Grant of Franchise**”), and that such conditions are hereby appended to the Acquisition Agreement as Appendix G and incorporated into the Acquisition Agreement.
2. **GRANT OF FRANCHISE.** In Article 3.1 of the Acquisition Agreement under the heading “**Grant of Franchise**,” the first sentence is hereby deleted in its entirety and replaced with the following:

Subject to the terms of and upon the conditions contained in this Agreement, we hereby grant you a franchise (the “Franchise”) to operate a **PLANET FITNESS Business** solely at the Location, as modified by Appendix G, if applicable, and a license to use the Marks and the System in the operation thereof, for a term commencing on the Effective Date and expiring on January 25, 2030 (the “Term”), unless sooner terminated in accordance with Article 15 hereof.

3. **LOCATION SELECTION, LEASE OR PURCHASE OF LOCATION AND LOCATION DEVELOPMENT.**
 - a. In Article 4.1 of the Acquisition Agreement under the heading “**Location Selection and Approval**,” the first sentence is hereby deleted in its entirety.

- b. In Article 4.2 of the Acquisition Agreement under the heading “**Purchase or Lease of the Location,**” the first two sentences are hereby deleted in their entirety and replaced with the following:

You must have leased, subleased, or purchased the Location prior to signing this Agreement, unless otherwise set forth in Appendix G.

- c. In Article 4.4(2) of the Acquisition Agreement under the subheading “**Construction**” the first four sentences are hereby deleted in their entirety, and replaced with the following:

You must start remodeling or construction of your BUSINESS if applicable, within the time frame set forth in Appendix G. You must engage a general contractor acceptable to us. You must procure all applicable construction insurance in amounts and coverage acceptable to us. You must complete remodeling or construction of your BUSINESS if applicable, within the time frame set forth in Appendix G; provided, however, that if you demonstrate to us that you are working in good faith and earnestly toward this end, we may grant you an extension beyond the applicable timeframe described above.

- d. In Article 4.6 of the Acquisition Agreement with the heading “**Start-up Inventory, Furniture, Fixtures, Software, Equipment and Supplies,**” the first sentence is hereby deleted in its entirety and replaced with the following:

Prior to Seller’s commencement of operations under the Initial Franchise Agreement, Prior Franchisor provided Seller with lists of the start-up inventory, furniture, fixtures, software, equipment and supplies that Prior Franchisor required Seller to obtain prior to commencing operations under the Initial Franchise Agreement.

- e. If the Business Commencement Date has occurred prior to the Effective Date, Article 4.7 of the Acquisition Agreement, with the heading “**Membership Pre-Sale,**” is hereby deleted in its entirety.
- f. If the Business Commencement Date has occurred prior to the Effective Date, Article 4.8 of the Acquisition Agreement, with the heading “**Business Commencement,**” is hereby deleted in its entirety and replaced with the following:

4.7 CONTINUANCE OF OPERATIONS. You shall continue BUSINESS operations after the execution of this Agreement, provided that:

- (1) we approve the BUSINESS as developed, remodeled, and/or reequipped in accordance with our specifications and standards and Appendix G;
- (2) initial or refresher training has been completed by you, your Responsible Owner, your Approved Operator, and/or your employees to our satisfaction as provided in Article 6.2;
- (3) you have given us a copy of your current Lease;
- (4) any transfer fee and all other amounts then due to us have been paid;
- (5) we have been furnished with copies of all insurance policies required by this Agreement, or such other evidence of insurance coverage and payment of premiums as we request or accept; and

- (6) you have obtained all required permits, authorizations, licenses and certifications for operating the BUSINESS, and the Location is in compliance with all laws, rules and regulations.
- g. If the Business Commencement Date has occurred prior to the Effective Date, Article 4.9 of the Acquisition Agreement, with the heading “**Business Commencement Deadline**,” is hereby deleted in its entirety.
- h. If the Business Commencement Date has not occurred prior to the Effective Date, Article 4.9 of the Acquisition Agreement, with the heading “**Business Commencement Deadline**,” is hereby deleted in its entirety and replaced with the following:

4.8 BUSINESS COMMENCEMENT DEADLINE. The Business Commencement Date must occur within three hundred and thirty (330) days after the Initial Agreement Date, or, in the case of a ground-up build, four hundred and fifty (450) days after the Initial Agreement Date, and, in either case, within five (5) days after we notify you that the conditions set forth in this Article regarding opening have been satisfied.

4. **FEES.**

- a. Article 5.1 of the Acquisition Agreement with the heading “Initial Franchise Fee,” is hereby deleted in its entirety.
- b. For clarity, for the purposes of Article 5.2 of the Acquisition Agreement, the Year of the Franchise Agreement Term begins as of the Business Commencement Date, which was January 25, 2020, such that Business Services Fee and Trademark License Fee are currently each 2.25% as of the Effective Date.

5. **TRAINING, ASSISTANCE, AND METHODS OF OPERATION.**

- a. In Article 6.1 of the Acquisition Agreement with the heading “**Training**,” the first three sentences are hereby deleted in their entirety and replaced with the following:

If you are a new franchisee, we will furnish in the English language initial training on the operation of a **PLANET FITNESS** Business (“Initial Training”) to you (or, if you are an Entity, your Responsible Owner and Approved Operator), and up to two (2) additional Owners or managers you elect to enroll in the training program, that we approve at no additional charge to you. Initial Training consists of a minimum of two (2) working days of training for you (or your Responsible Owner and Approved Operator), and your Owners or managers to be furnished at our training location or at an operating **PLANET FITNESS** Business. If we provide Initial Training, you (or your Responsible Owner and Approved Operator), and your Owners or managers are required to complete Initial Training to our satisfaction.

6. **PLANET FITNESS METHODS OF OPERATION.**

- a. In Article 9.2 of the Acquisition Agreement under the heading “**Modification of Methods of Operation**,” the second sentence is hereby deleted in its entirety and replaced with the following:

Any such modifications may obligate you to invest additional capital in the BUSINESS in addition to any requirements set forth in Appendix G hereto (“Capital Modifications”), and/or incur higher operating costs; provided, however, that such modifications will not alter your fundamental status and rights under this Agreement.

- b. In Article 9.3(2) of the Acquisition Agreement under the subheading “**Re-equipment**,” the first sentence is hereby deleted in its entirety and replaced with the following:

Re-equipment. We reserve the right to require you to replace and update at your BUSINESS, in addition to the requirements set forth in Appendix G: (a) all cardio equipment not more often than every five (5) years, as we determine, in our discretion, based on usage and brand standards, (b) all other fitness equipment not more often than every seven (7) years, as we determine, in our discretion, based on usage and brand standards, and (c) all amenity equipment not more often than every seven (7) years or such shorter period of time as we may determine, and as further specified in the Operations Manual or otherwise in writing from time to time.

- c. In Article 9.3(3) of the Acquisition Agreement under the subheading “**Remodeling**,” the first sentence is hereby deleted in its entirety and replaced with the following:

Remodeling. You must periodically upgrade and/or remodel your BUSINESS premises, as we may reasonably require, pursuant to our plans and specifications (which may include the placement of additional fitness and amenity equipment), provided, however, that with the exception of signage, we will not require substantial remodeling or upgrades more often than every five (5) years except as otherwise set forth in Appendix G.

7. **MARKETING.**

- a. In Article 10.2(1) of the Acquisition Agreement under the subheading “**Pre-Sale/Grand Opening Marketing**,” the first sentence is hereby deleted in its entirety and replaced with the following:

You will collaborate with us to develop a plan for your pre-sale marketing (the “Pre-Sale Marketing Plan”) and for your grand opening marketing (the “Grand Opening Marketing Plan” and together with the Pre-Sale Marketing Plan, the “Pre-Sale/Grand Opening Marketing Plans”) if the Pre-Sale/Grand Opening Marketing Period has not previously expired.

- b. In Article 10.3 of the Acquisition Agreement under the heading “**Advertising Cooperatives**,” the third sentence is deleted in its entirety and replaced with the following:

If your BUSINESS is within the territory of an existing Cooperative, you agree to immediately become a member of the Cooperative.

8. **TRANSFER.** In Article 13.3 of the Acquisition Agreement under the heading “Conditions for Approval of Transfer,” the following language is hereby inserted at the end of subsection (1):

You have completed all requirements set forth in Appendix G, to our satisfaction.

9. **DEFAULT.** In Article 15.2 of the Acquisition Agreement under the heading “**Default**,” the following language is hereby added as new subsection (4)(e):

(e) fail to comply with the requirements set forth in Appendix G hereof, subject to a cure period of thirty (30) days.

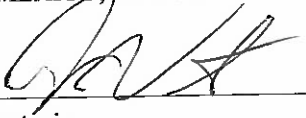
10. **DEFINED TERMS.** All defined terms are used herein as defined in the Acquisition Agreement, unless otherwise herein indicated. If there is any conflict between the Acquisition Agreement and this Amendment, this Amendment shall govern. Except as specifically amended herein, all of the other terms and conditions of the Franchise Agreement are hereby ratified and confirmed.

11. **ENTIRE AGREEMENT.** This Amendment, the Acquisition Agreement, and any other documents referred to herein constitute the complete understanding of the parties regarding the subject of this Amendment. Except for those specifically permitted to be made unilaterally by you or us hereunder, no amendment, change, or variance from this Amendment shall be binding on either party, unless mutually agreed to by the parties and executed by their authorized officers or agents in writing.

[Remainder of page intentionally left blank; signature page following]

IN WITNESS WHEREOF, intending to be legally bound hereby, the parties hereto have executed and delivered this Amendment as of the Effective Date.

PLANET FITNESS MEXICO, S. DE R.L. DE C.V.

By:  _____

Print Name: Justin Vartanian

Title: General Counsel and SVP, International Division

EFFECTIVE DATE: December 28, 2023

(Franchisee signature on next page)

FRANCHISEE:

JEG-MEXICO BUENO, S. DE R.L. DE C.V

By: 

Print Name: Alejandro del Conde Carmona

Title: Legal Representative

Dated: January 10, 2024

ATTACHMENT A

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APPENDIX G
CONDITIONS FOR GRANT OF FRANCHISE – NOT APPLICABLE

You agree to fully comply with each of the conditions checked below as a condition of acquiring a franchise:

- ☐ **Remodel Requirements:** You agree to complete, to our satisfaction and in accordance with the then-current PLANET FITNESS Operations Manual, within [INSERT TIME FRAME] from the Effective Date of this Agreement, the remodel requirements attached hereto (the "Remodel Requirements"), which are hereby incorporated by reference.
- ☐ **Recommended Relocation Requirements:** You agree to work in good faith to relocate the BUSINESS to a location approved by us, in our sole discretion, based on our current brand standards. If you fail to relocate the BUSINESS within [INSERT TIME FRAME] from the Effective Date of this Agreement, then we reserve the right to require, in our sole discretion, that the premises be remodeled to our satisfaction within [INSERT TIME FRAME] from the Effective Date of this Agreement.
- ☐ **Mandatory Relocation Requirements:** You agree to relocate the BUSINESS to a location approved by us, in our sole discretion, based on our current brand standards. If you fail to relocate the BUSINESS within [INSERT TIME FRAME] from the Effective Date of this Agreement, then we reserve the right to terminate the Agreement.
- ☐ **Re-Equipment Requirements:** You agree to fully comply with the re-equipment requirements attached hereto (the "Re-Equipment Requirements"), which are hereby incorporated by reference.
- ☐ **Design Requirements:** You agree to provide the current club layout and equipment list to our design team via layouts@pfhq.com within [INSERT TIME FRAME] from the Effective Date of this Agreement. Once we review your club layout and equipment list, we may require you to purchase additional equipment in order to bring your equipment count and mix into compliance with our current standards.
- ☐ **Operations Requirements:** You agree to fully comply with the additional operations requirements attached hereto (the "Operations Requirements"), which are hereby incorporated by reference.
- ☐ **Marketing Requirements:** You agree to fully comply with the additional marketing requirements attached hereto (the "Marketing Requirements"), which are hereby incorporated by reference.

FRANCHISEE:

JEG-MEXICO BUENO S. DE R.L. DE C.V.

By: _____

Print Name: Alejandro del Conde Carmona

Title: Legal Representative

Date: January 10, 2024

FRANCHISOR:

PLANET FITNESS MEXICO, S. DE R.L. DE C.V.

By: _____

Print Name: Justin Vartanian

Title: General Counsel and SVP, International Division

Date: _____

RE-EQUIPMENT REQUIREMENTS

You agree to purchase equipment for the **PLANET FITNESS** Business location listed below in accordance with the terms set forth below. You agree to either (i) pay for such orders in cash or immediately available funds at the time of order, or (ii) provide satisfactory proof of third party financing, determined in our reasonable discretion, in an amount no less than the minimum purchase order price set forth below. You further agree to dispose of all replaced equipment in accordance with our then current Methods of Operations. For the sake of clarity and notwithstanding the Re-Equipment Requirements outlined herein, you acknowledge that you must comply with the terms of the Acquisition Agreement at all times. Minimum purchase orders set forth below do not include delivery, placement, taxes and other ancillary costs.

[Franchisor to provide]

REMODEL REQUIREMENTS

You agree to complete the required work identified below or in the attached document (the “Required Work”) within [TIMEFRAME] from the Effective Date of this Agreement. For the avoidance of doubt, the amounts set forth below represent an estimate of the cost of the Required Work and the actual cost may be more or less than this amount. The Required Work must be completed in accordance with our **PLANET FITNESS** Operations Manual and ancillary documents.

[Franchisor to provide]